END USER LICENSE AGREEMENT

IMPORTANT NOTICE:

- Studio Buchanan license the use of the assets to the client on the terms of this eula. Studio Buchanan does not sell the assets to the client and Studio Buchanan remains the owner of the assets at all times.
- By downloading and/or installing the assets the client agrees to the terms of this eula which will bind it.
- If the client does not agree to the terms of this eula, the client must not download or install the assets and studio buchanan will not license the assets to the client and the client's rights to access the assets will terminate immediately.

This End User Licence Agreement ("**EULA**") will always include Schedules 1 and 2. Schedules 3, 4 and/or 5 will apply where the corresponding licence use is expressly provided for in the Contract.

SCHEDULE NUMBER	TITLE
SCHEDULE 1	Definitions and Interpretation
SCHEDULE 2	General Terms
LICENSE USE SCHEDULES	
SCHEDULE 3	Desktop Terms
SCHEDULE 4	Website Terms
SCHEDULE 5	App / eBook Terms

SCHEDULE 1

1. The following definitions apply in this EULA and the Schedules.

1.1. **App:** a software application;

Assets: the fonts, typefaces, graphics, animations, videos, designs, illustrations, artwork, text developed by Studio Buchanan which are subject to the Licence, as detailed in the Contract or Purchase Receipt;

Authorised Third Party: a third party that the Client engages for the provision of goods or services, which will require the use of the Assets on its behalf and who has entered into a Third Party End User Licence Agreement in accordance with clause 5.2;

Business Day: a day other than a Saturday, Sunday or public holiday in England;

Client Device: a computer or other similar static or mobile device that is owned and controlled by the Client;

Contract: means collectively the Studio Buchanan Terms & Conditions of Business and any applicable Statement of Work or Purchase Receipt relating to the Assets and/or Documentation from time to time which is entered into between Studio Buchanan and the Client;

Documentation: any other documents and/or materials made available to the Client in connection with the Assets;

Download Location: the secure site where the Assets are made available by Studio Buchanan to the Client;

eBook: a non-executable file that can be viewed using eBook reader software or electronic reading devices;

Fees: the licence fees specified in the Contract;

Intellectual Property Rights: any patents, trade marks, service marks, copyright, database rights, moral rights, design rights, unregistered design rights, domain names, rights in get-up, know-how, confidential information and any other intellectual or industrial property rights whether or not registered or capable of registration and whether subsisting in England or any other part of the world together with any goodwill relating or attached to such rights;

Internal Users: users who are employees, contractors or directors of the Client who use Client Devices, but excluding:

(a) the Client's customers;

(b) other third parties; or

(c) contractors who are not using a Client Device;

Licence: the licence(s) granted by Studio Buchanan to the Client to use the Assets and/or Documentation, as provided for under this EULA;

Licence Term: the term of the Licence, as provided for in the Contract;

Permitted Devices: Client Devices and devices that belong to or are used by Authorised Third Parties;

Third Party End User Licence Agreement: Studio Buchanan's sub-licence terms, the form of which will be provided by Studio Buchanan to the Client from time to time.

INTERPRETATION

2. Unless the context otherwise requires, words in the singular shall include the plural and in the plural shall include the singular.

2.1. The terms 'including', 'include', 'in particular' or any similar expression shall be illustrative only and are not intended to limit the sense of the words preceding those terms.

2.2. Any obligation on any party not to do or omit to do anything is to include an obligation not to allow that thing to be done or omitted to be done.

2.3. A reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time.

2.4. Unless the context otherwise requires, a reference to a clause is to a clause in the same Schedule.

2.5. Clause headings are for reference purposes only and shall not affect the interpretation of this EULA.

2.6. A reference to 'writing' or 'written' includes email unless stated otherwise, but not faxes.

2.7. Time shall not be of the essence, with the exception of payment of the Fees, in which case time shall be of the essence.

2.8. In the event of a conflict between this EULA and the Contract, the Contract will prevail.

2.9. In the event of conflict between any part of this EULA the conflicting terms will take precedence in descending order

2.10. of priority as follows:

2.10.1. Schedule 3 (Desktop Terms);

2.10.2. Schedule 4 (Website Terms);

2.10.3. Schedule 5 (App / eBook Terms);

2.10.4. Schedule 2 (General Terms); and

2.10.5. Schedule 1 (Definitions).

SCHEDULE 2

1. STATUS

1.1. Studio Buchanan may update this EULA at any time by emailing the Client with details of the change.

1.2. From time to time updates to the Assets may be released. Certain updates, upgrades and/or additional features may also be subject to additional payment.

2. LICENCE

2.1. The Assets remain the property of Studio Buchanan. Nothing in this EULA is a transfer of ownership of the Assets from Studio Buchanan to the Client.

2.2. The licence to use the Assets and Documentation is set out in the Schedules which are identified in the Cover Sheet as incorporated in this EULA. The Client has no rights to the Assets other than those expressly stated in this EULA.

2.3. The Licence is personal to the Client. In the event that the Client uses the Assets and/or Documentation to provide a service (whether paid for or not) to a third party then such third party will require a separate licence from Studio Buchanan.

2.4. Studio Buchanan warrants that it has all Intellectual Property Rights in relation to the Assets and the Documentation that are necessary to grant all the rights that it purports to grant under, and in accordance with, the terms of this EULA.

3. FEES AND PAYMENT

3.1. In consideration of the granting and continuation of the Licence under this EULA, the Client must pay all Fees under the Contract by the relevant due date.

4. FILE FORMATS

4.1. The Assets will be provided using the file formats specified in the Contract.

4.2. The Assets are engineered to be of the highest compatibility with external software and services, however, other than expressly specified in the Contract, Studio Buchanan cannot guarantee compliance or on-going compliance with all possible hardware or software.

4.3. Studio Buchanan does not warrant that:

4.3.1. the Assets or Documentation will be error-free;

4.3.2. the Download Location for the Assets and Documentation will be continually available; and/or

4.3.3. the Assets and Documentation will be compatible with all hardware, software, browsers or devices now and in the future.

5. LICENCE RESTRICTIONS

5.1. Except as expressly set out in this EULA the Client agrees.

5.1.1. not to merge, adapt, vary or modify the Assets or Documentation;

5.1.2. except as may be permitted by any applicable law which is incapable of exclusion by agreement between the parties, not to attempt to reverse compile, disassemble or reverse engineer all or any part of the Assets;

5.1.3. not to use the Assets or Documentation to provide services to third parties;

5.1.4. subject to clause 5.2, not to license, sell, loan, rent, lease, transfer, assign, distribute, disclose, or otherwise commercially exploit, or otherwise make the Assets or Documentation

available to any third party;

5.1.5 not to attempt to obtain, or assist third parties in obtaining, access to the Assets or Documentation other than as permitted by this EULA; and

5.1.6. not to enable End Users of any Website, eBook or App to create or edit content that includes the Assets. In particular the Client must not allow or enable any Website or App feature the enables an End User to save or export files containing the Assets,

together defined as "**Licence Restrictions**".

5.2. Notwithstanding clause 5.1.4, if the Client wishes for any supplier to use any of the Assets and/or Documentation for the sole purpose of delivering a product or service to the Client (e.g. a marketing agency), the Client may sub-licence the Assets and/or Documentation to that supplier provided that:

5.2.1 Studio Buchanan has not notified the Client that the Assets and/or Documentation may not be sub-licensed to the supplier;

5.2.2. the Client prepares the Third Party End User Licence Agreement in accordance with the footnote instructions provided in the Third Party End User Licence Agreement;

5.2.3. the Client does not make any changes to the Third Party End User Licence Agreement other than those referred to in clause 5.2.2;

5.2.4. the supplier is not authorised by the Third Party End User Licence Agreement to use the Assets or Documentation for any purpose not permitted in this EULA; and

5.2.5. the supplier signs the Third Party End User Licence Agreement prepared in accordance with clauses 5.2.2, 5.2.3 and 5.2.4.

5.3. Any sub-licensing of the Assets or Documentation other than in accordance with clause 5.2 shall be a breach of the Licence Restrictions.

5.4. The Client hereby undertakes that that it will maintain its own records of executed Third Party End User Licence Agreements.

5.5. Promptly following Studio Buchanan's request, the Client must provide Studio Buchanan with a list of all past and current Authorised Third Parties, together with a copy of the applicable Third Party End User Licence Agreements.

5.6. The Client must promptly provide Studio Buchanan with any information relating to the Authorised Third Parties and their use of the Assets and Documents as requested by Studio Buchanan from time to time.

5.7. The Client will indemnify and keep Studio Buchanan indemnified, on demand, against all losses, costs and liabilities and all expenses, including reasonable legal or other professional expenses, suffered or incurred by Studio Buchanan arising out of or in connection with any Authorised Third Party's breach of their Third Party End User Licence.

6. CLIENT OBLIGATIONS

6.1. The Client shall use its best endeavours to use adequate technological and security measures, to prevent third parties accessing the Assets and/or Documentation, including obfuscating and security protecting the files within any web server or application the Assets are used within.

6.2. It is the Client's responsibility to ensure that the terms of this EULA are complied with, including staying within the license limitations.

6.3. The Client agrees to provide Studio Buchanan with all reasonably required information, co-operation and assistance as may be required by Studio Buchanan under this EULA in a timely and efficient manner.

6.4. The Client will, in respect of any URL or login information required to access the Download Location ("**Security Details**"):

be responsible for all use of the Assets or Documentation accessed through the Security

6.4.1. Details. The Client acknowledges that Studio Buchanan shall have no liability whatsoever in relation to unauthorised use of the Assets or Documentation through the Client's Security Details;

keep them confidential and not disclose them to anyone;

6.4.2. not write them down or store them anywhere on a computer in plain text; and

6.4.3 without prejudice to the obligations undertaken in this clause, notify Studio Buchanan immediately upon the Client becoming aware or suspecting that the Client's Security Details have been used, or may be known, by any third party; and

6.4.5. ensure that an appropriate and up-to-date virus protection program and firewall (both of which should be compliant with good industry standards) is installed and used on any computer used by the Client and on which the Assets or Documentation are stored or installed.

6.5. The Client acknowledges and agrees that access to the Assets, Documentation or other electronic material through the Client's Security Details is at the Client's risk in relation to any damage to software or data by a virus.

6.6. In the event that an employee or contractor with access to the Assets or Documentation and/or the Security Details ceases to be employed or engaged by the Client, the Client must ensure that such individuals permanently delete copies of or installations of the Assets and Documentation and do not continue to use the Security Details.

CONFIDENTIALITY AND DATA PROTECTION

7. 7.1. A party ("**Receiving Party**") will keep in strict confidence all technical or commercial know-how, specifications, inventions, processes or initiatives which are of a confidential nature and have been disclosed to the Receiving Party by the other party ("**Disclosing Party**") or its employees, agents or sub-contractors and any other confidential information concerning the Disclosing Party's business, its products and services which the Receiving Party may obtain ("**Confidential Information**").

7.2. In relation to any Confidential Information received from the Disclosing Party or from a third party on behalf of the Disclosing Party, the Disclosing Party and the Receiving Party agree:

7.2.1. to treat the Confidential Information in confidence and to use it only for the purpose of discharging the Receiving Party's obligations under this End User Agreement;

7.2.2. not to copy or write down any part of the Confidential Information except as is reasonably necessary in connection with the Services;

7.2.3. not to disclose the Confidential Information to any third party without the express written permission of the Disclosing Party (except that the Receiving Party may disclose the Confidential Information to its employees, agents and sub-contractors who need access to the Confidential Information strictly in connection with discharging the Receiving Party's obligations under this End User Agreement and provided that such employees, agents and sub-contractors are made aware of the confidential nature of the Confidential Information and are subject to confidentiality obligations at least as onerous as those set out in this End User Agreement); and

7.2.4. to treat the Confidential Information with the same degree of care and with sufficient protection from unauthorised disclosure as the Receiving Party uses to maintain its own confidential or proprietary information.

7.3. Nothing in this End User Agreement will prevent the Receiving Party from using or disclosing any Confidential Information which:

7.3.1. is in or comes into the public domain in any way without breach of this End User Agreement by the Receiving Party or any person or entity to whom it makes disclosure;

7.3.2. the Receiving Party can show:

a) was in its possession or known to it by being in its use or being recorded in its files prior to receipt from the Disclosing Party and was not acquired by the Receiving Party from the Disclosing Party under an obligation of confidence; or

b) to have been independently developed by the Receiving Party without reference to the Confidential Information;

7.3.3. the Receiving Party obtains or has available from a source other than the Disclosing Party without breach by the Receiving Party or such source of any obligation of confidentiality or non-use;

7.3.4. is disclosed by the Receiving Party with the prior written approval of the Disclosing Party; or

7.3.5. is required by law to be released (e.g. by a court order), provided that, when permitted by the applicable law, the Disclosing Party is given as much prior written notice as possible of such request.

7.4. Studio Buchanan will process any contact information relating to the Client's representatives in accordance with the Data Protection provisions contained in the Contract.

7.5. This clause 7 will survive the termination of this End User Agreement.

8. TERMINATION

8.1. The Client's rights to use the Assets and Documentation will immediately terminate at the earlier of the termination or expiry of the Licence Term. This provision does not prevent the Client from continuing to use the following after termination or expiry of the Licence Term:

8.1.1. Portable Document Format (PDF) files, PostScript (PS) files, Encapsulated PostScript (EPS) files or rasterized image files that were created; or

8.1.2. Apps and eBooks that were published,

before the expiry or termination of the Licence Term.

8.2. This EULA may be terminated by the Client at any time with immediate effect by providing written notice of termination to Studio Buchanan, provided that all Fees due under the Contract are paid in full and all other terms of this EULA are adhered to.

8.3. Studio Buchanan may terminate or suspend (at its sole discretion) this EULA immediately by providing notice to the Client if the Client breaches:

8.3.1. any of the Licence Restrictions in clause 5.1;

8.3.2. any of the Client's obligations set out in clause 6;

8.3.3. Schedule 3;

8.3.4. Schedule 4; or

8.3.5. Schedule 5.

8.4. Without limiting any other rights or remedies, either party ("Terminating Party") may terminate this EULA with immediate effect by providing written notice to the other party ("Defaulting Party") on or at any time after the occurrence of any of the events specified below:

8.4.1. a breach by the Defaulting Party of its obligations under this EULA or the Contract which (if the breach, in Studio Buchanan's reasonable opinion, is capable of remedy) the Defaulting Party has failed to remedy within 7 days after receipt of notice in writing from the Terminating Party requiring the Defaulting Party to do so; or

8.4.2. an event, including (or similar in nature to) the following:

a) the Defaulting Party is unable to pay its debts as they fall due;

b) the Defaulting Party goes into bankruptcy or liquidation either compulsorily (except for the purpose of reconstruction or amalgamation) or voluntarily;

c) a receiver is appointed in respect of the whole or any part of the Defaulting Party;

d) a provisional administrator or liquidator is appointed to the Defaulting Party or the Defaulting Party enters into a voluntary arrangement or any other composition or compromise with the majority by value of its creditors or has a winding-up order or passes a resolution for the voluntary winding-up or has an administrative receiver appointed or takes steps towards any such event; or

e) the Defaulting Party suspends, or threatens to suspend, or ceases or threatens to cease to carry on all or a substantial part of its business.

8.5. On termination for any reason:

8.5.1. all rights granted to the Client under this EULA shall cease with immediate effect;

8.5.2. any Third Party Licence will terminate with immediate effect;

8.5.3. The Client shall, immediately cease all activities authorised by this EULA, and shall at its

own cost and expense ensure that all copies and/or installations of the Product in the Licencee's, its employees', directors', consultants' or Authorised Third Parties' possession or control are destroyed or deleted, including (without limitation) from any back-up systems or any cache within their control. The Client must provide written confirmation of their compliance with this clause to Studio Buchanan within 14 days of the effective date of termination; and

8.5.4. any rights, remedies, obligations or liabilities of the parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the EULA which existed at or before the date of termination shall not be affected or prejudiced.

8.6. If, for whatever reason, Studio Buchanan's relationship with a third party service or data provider is restricted, suspended or terminated which affects Studio Buchanan's ability to provide the Download Location, Studio Buchanan will notify the Client in writing and use reasonable endeavours to resolve as soon as possible. However, Studio Buchanan will have no liability to the Client for any such interruptions or termination.

8.7. Any provision of this EULA that expressly or by implication is intended to come into or continue in force on or after termination or expiry of this EULA shall remain in full force and effect.

9. AUDIT

9.1. During the term of this EULA and for a period of two years following its termination, upon reasonable notice to the Client, Studio Buchanan will have the right to audit all usage of the Assets by the Client, provided that the Client will not be required to submit to such audit more than twice in any calendar year. The Client will provide Studio Buchanan (and its auditors and other advisers) with all reasonable co-operation, access and assistance in relation to each audit. The parties will bear their own costs and expenses incurred in respect of compliance with their obligations under this clause 9.1, unless the audit identifies a material default by the Client, in which case the Client will reimburse Studio Buchanan for all of its reasonable costs incurred in the course of the audit.

9.2. If an audit identifies that the Client is in breach of this EULA, without prejudice to Studio Buchanan's other rights and remedies, the Client will promptly take the necessary steps to comply with its obligations (including making a payment for any use of the Assets outside of the agreed licence scope at Studio Buchanan's then current rates).

10. MISCELLANEOUS

10.1 Subject to the terms of the Contract, this EULA constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter. Each party acknowledges that in entering into this EULA it does not rely on, and shall have no remedies in respect of, any statement, representation, assurance or warranty (whether made innocently or negligently) that are not set out in this EULA. Each party agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement based on any statement in this EULA. Studio Buchanan reserves the right to make changes to this EULA at any time upon providing the Client with notice.

10.2. If the Client continues to use the Assets and/or Documentation then the Client will be deemed to have accepted the updated EULA.

10.3. Subject to clause 10.2, no variation of this EULA will be effective unless it is in writing and signed by the authorised representatives of the parties.

10.4. No failure or delay by a party to exercise any right or remedy provided under this EULA or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy. The rights and remedies provided under this EULA are in addition to, and not exclusive of, any rights or remedies provided by law.

10.5. The Client shall not, without the prior written consent of Studio Buchanan, assign, transfer, charge, sub-contract or deal in any other manner with all or any of its rights or obligations under this EULA. Studio Buchanan may at any time

assign, transfer, charge, sub-contract or deal in any other manner with all or any of its rights or obligations under this EULA.

10.6. Nothing in this EULA is intended to or shall operate to create a partnership between the parties, or to authorise either party to act as agent for the other, and neither party shall have authority to act in the name or on behalf of or otherwise to bind the other in any way (including without limitation the making of any representation or warranty, the assumption of any obligation or liability and the exercise of any right or power).

10.7. No one other than a party to this EULA, their successors and permitted assignees, shall have any right to enforce any of its terms.

10.8. If any provision or part-provision of this EULA is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of this EULA.

10.9. All notices must be in writing and are deemed given when mailed by registered or certified mail, return receipt requested, to the other party's registered address (or such other address notified to the other party in writing from time to time). It is agreed that serving notice by email or fax will not be an effective method of providing notice of a claim under this EULA.

11. LAW AND JURISDICTION

11.1. This EULA and any disputes or claims arising out of or in connection with it or its subject matter or formation (including without limitation non-contractual disputes or claims) are governed by English law and the parties irrevocably submit to the exclusive jurisdiction of the English courts.

SCHEDULE 3

The definitions below apply in this Schedule:

Permitted Use:

(a) the production of print and marketing materials to be embedding in Portable Document Format (PDF), PostScript (PS), or Encapsulated PostScript (EPS) files including but not limited to logos, business cards, letterheads, books, billboards, apparel etc; and

(b) to create rasterized website images (images that are created and flattened e.g. gif, png, jpg, tiff etc) that are not editable.

1. Studio Buchanan hereby grants to the Client a non-exclusive, royalty free, revocable (where expressly permitted in the terms of this EULA and the Contract only), non-transferable, non-sublicensable worldwide licence to install any Assets on such number of Permitted Devices as set out in the Contract ("**Desktop User Limit**") for the Permitted Use only until the end of the Licence Term (howsoever arising).
2. The Client and any Authorised Third Party may only use the Assets and Documentation for the Client's business operations.
3. If the Assets comprise more than one item, the installation of one or more such item on a Permitted Device shall be considered an installation of the Assets for the purpose of calculating whether the Desktop User Limit is being complied with.
4. Unless otherwise permitted in this EULA, the Assets should not be embedded in any way whatsoever or uploaded to an online environment, website or App.
5. If the Client wishes to increase the number of Permitted Devices the Assets can be installed on, it must acquire

additional licences.

6. Permitted Devices may be connected to as many output devices as needed (e.g. printers, imagesetters etc.).
7. The Client may store a copy of the Assets on such number of internal servers as is reasonably required. A server shall not be considered a Permitted Device for the purposes of calculating whether the Desktop User Limit is being complied with unless users are able to undertake the Permitted Use directly on the server, in which case, every user account that has access to such a facility on a server shall be counted as a Permitted Device.

SCHEDULE 4

The definitions below apply in this Schedule:

Permitted Use: the embedding into the Client's Website(s) of fonts using the CSS @font-face technique only.

Client's Website(s): any websites detailed in the Contract.

Page Views: the total number of page views on the Client's Website(s) in a calendar month, excluding page views by Internal Users.

@font-face: a CSS rule which allows the download of font software from a web server to render a web-page.

1. Studio Buchanan hereby grants to the Client a non-exclusive, royalty free, revocable (where expressly permitted in the terms of this EULA and the Contract only), non-transferable, non-sublicensable worldwide licence to install any Assets on:
   1.1. the number Permitted Devices as set out in the Contract ("Webdev User Limit"); and
   1.2. on web servers under the Client's control,

   for the Permitted Use provided that the Client's Website(s) may serve no more than the number of monthly Page Views as set out in the Contract ("Website Page View Limit") until the end of the Licence Term (howsoever arising).
2. The Client and any Authorised Third Party may only use the Assets and Documentation for the Client's business operations.
3. If the Assets comprise more than one item, the installation of one or more such item on a Permitted Device shall be considered an installation of the Assets for the purpose of calculating whether the Webdev User Limit is being complied with.
4. The use of the Assets on Permitted Devices is restricted to web design and web development preparing them for use on the Client Websites.
5. Unless otherwise permitted in this EULA the Assets should not be used for:
   5.1. the production of print and marketing materials;
   5.2. the creation of rasterized images (images that are created and flattened e.g. gif, png, jpg, tiff etc), including for the Client's Websites;
   5.3. font technologies other than @font-face, such as sIFR, Cufón or Typeface.js; or
   5.4. embedded in any way whatsoever or uploaded to an App or online environment (other than the Client Websites as permitted by this Schedule).
6. If the Client wishes to increase the number of Permitted Devices the Assets can be installed on, it must acquire additional licences.
7. The Client must record and control the number of Page Views by using an analytics tool generally recognised to be able to properly document the number of page views to a website (such as Google Analytics). Studio Buchanan reserves the right to request and receive screenshots of the Client's analytics tool to prove the Client's compliance with the Website Page View Limit.
8. The Client may exceed the Website Page View Limit in one month only during the Licence Term. Any other months that exceed the Website Page View Limit will have to be covered by additional licenses purchased in accordance with the Contract.

9. The Client may store a copy of the Assets on such reasonable number of internal servers as is required. A server shall not be considered a Permitted Device for the purposes of calculating whether the Webdev User Limit is being complied with unless users are able to undertake the use permitted in clause 4 directly on the server, in which case, every user account that has access to such a facility on a server shall be counted as a Permitted Device.

10. The Client must ensure that Client Website(s) do not allow End Users to access, copy or download the Assets (in particular any fonts).

11. The Client may create previews of the live or development Client Website(s) in order to gather feedback on its design, or show the design in the Client's portfolio.

SCHEDULE 5

The definitions below apply in this Schedule:

Permitted Use:

(a) embedding the Assets or otherwise making them available to view in an eBook; and

(b) embedding the Assets or otherwise making them available to view in an App.

End User Device: any device that belongs to an End User.

1. Studio Buchanan hereby grants to the Client a non-exclusive, royalty free, revocable (where expressly permitted in the terms of this EULA and the Contract only), non-transferable, non-sublicensable worldwide licence to install the Assets on:

   1.1. the number of eBooks as set out in the Contract ("eBook Publication Limit");

   1.2. the number of Apps as set out in the Contract ("App Publication Limit"); and

   1.3. the number Permitted Devices as set out in the Contract ("Software Development User Limit"),

   for the Permitted Use until the end of the Licence Term (howsoever arising).

2. For the purposes of determining the App Publication Limit, one App is one application with the same name designed to run and function on any software platform, on any operating system and which is functionally equivalent across multiple platforms and operating systems. Any reasonable regional or format variations of an App shall not count further towards the App Publication Limit.

3. For the purposes of determining the eBook Publication Limit, one eBook is one publication with the same name designed to run and function on any eBook reader software or electronic reading devices and which is functionally equivalent across multiple eBook reader software or electronic reading devices. Any reasonable regional or format variations of an eBook shall not count further towards the eBook Publication Limit.

4. The Client and any Authorised Third Party may only use the Assets and Documentation for the Client's business operations.

5. If the Assets comprise more than one item:

   5.1. the installation of one or more such item on a Permitted Device shall be considered an installation of the Assets for the purpose of calculating whether the Software Development User Limit is being complied with; and

   5.2. the embedding of one or more such item in an eBook or App shall be considered an embedding of the Assets for the purpose of calculating whether the eBook Publication Limit or App Publication Limit (as the case may be) is being complied with.

6. The use of the Assets on Permitted Devices is restricted to "software development or 'eBook authoring' activities in preparing them for use in eBooks or Apps.

7. Unless otherwise permitted in this EULA the Assets should not be used for:

   7.1. the production of print and marketing materials;

7.2. the creation of rasterized images (images that are created and flattened e.g. gif, png, jpg, tiff etc), including for the inclusion in an App or eBook;

7.3. fonts with the CSS @font-face technology; or

7.4. embedded in any way whatsoever or uploaded to an online environment or Website.

8. The Client must record the number and identity of eBooks and Apps downloaded or installed that include any Assets and which are downloaded or installed on End Users' devices by using methods generally recognised to be able to properly document downloads and installs. Studio Buchanan reserves the right to request details of such methods and receive screenshots of the Client's tools and reports to prove the compliance with the eBook Publication Limit and App Publication Limit.

9. The Client may store a copy of the Assets on such reasonable number of internal servers as is required. A server shall not be considered a Permitted Device for the purposes of calculating whether the Software Development User Limit is being complied with unless users are able to undertake the use permitted in clause 6 directly on the server, in which case, every user account that has access to such a facility on a server shall be counted as a Permitted Device.

10. The Client must secure Apps and eBooks in such a way to ensure that End Users cannot access, copy or download the Assets (in particular any fonts). By way of example some of the file formats that meet these criteria include but are not limited to PDF, EPUB 2.01, EPUB 3 and KF8.

11. If the Client wishes to increase the Software Development User Limit, the eBook Publication Limit or the App Publication Limit, it must acquire additional licences.

12. The Client may create previews of a live or development eBook or App in order to gather feedback on its design, or show the design in the Client's portfolio.

13. eBooks and Apps that include the Assets may not be shipped, transferred or exported to any country or used in any way that is prohibited by applicable export legislation.